

8.

CASE #	CASE NAME	HEARING NAME
CVSW2204781	DE JESUS PEREZ VS LARIOS	MOTION TO QUASH SUBPOENAS TO (1) CATALYST KIDS CALLIE KIRKPATRICK, AND (2) PROJECT FATHERHOOD MEN IN RELATIONSHIPS GROUP AT FAMILIES

Tentative Ruling: DENY

Disclosure is LIMITED TO: records of service, requirements of service, and completion certificates pertaining to Plaintiff's attendance at Catalyst Kids and Project Fatherhood.

The disclosure **shall not** include any information relating to Plaintiff's minor children.

This is a motor vehicle accident litigation initiated by Plaintiff Jose De Jesus Perez. Defendant Luis Larios ("Larios") was driving a Peterbilt Trash Truck when he saw smoke coming from the rear of the trash truck. Larios began compacting the trash in the cargo area to smother the fire. When he saw flames coming from the back of the truck, Larios stopped the truck, got out, and waited for Cal-Fire. As Cal-Fire was attempting to extinguish the fire, a gas tank attached to the truck exploded, colliding with two fire department vehicles before it crashed into Plaintiff's car (the "Incident"). Plaintiff sustained severe and permanent injuries. The operative FAC asserts a sole cause of action for Negligence.

On January 26, 2024, Cross-Complainant Justin Holmquist ("Holmquist") filed a cross complaint against Plaintiff, Larios, City of Temecula (the "City"), CR&R Incorporated dba Temecula Environmental ("CR&R"), and Luxfer inc. ("Luxfer") for (1) indemnity, (2) contribution, and (3) declaratory relief.

On September 10, 2024, Insurance Company of the West ("Insurance") filed a complaint in intervention for negligence. The CII alleges that on the day of the accident, August 16, 2021, Plaintiff was acting within the course and scope of his employment for Coastline Heating and Air Conditioning, who were insured by Insurance. Insurance paid and may be obligated to pay workers' compensation benefits to Plaintiff.

Plaintiff now moves to quash the deposition subpoena for production of business records that CR&R and Larios (collectively, "Defendants") served on Catalyst Kids Callie Kirkpatrick ("Catalyst Kids") and Project Fatherhood men in Relationships Group At Families Uniting Families ("Project Fatherhood"). Catalyst Kids is the childcare facility where Plaintiff's minor children attend and where Plaintiff completed court ordered service hours. (Plaintiff Decl., ¶2.) Project Fatherhood is a social services organization where the court ordered Plaintiff to take parenting classes at in a matter separate and apart from this lawsuit. (*Id.* at ¶3.) Plaintiff argues the subpoenas (1) seek records that are not relevant to any claim or defense in this action; (2) are facially overbroad; and (3) violate Plaintiff's constitutional privacy rights. Plaintiff argues there are far less intrusive means available to Defendants.

In opposition, Defendants argue the records sought are relevant to Plaintiff's claims injuries. The records document a criminal case that took place during the same time period that the Incident occurred, when Plaintiff's alleged injuries and symptoms would have been their most acute.

In reply, Plaintiff argues Defendants' evidentiary showing is hearsay. Plaintiff generally repeats arguments in his moving papers and alternatively requests the Court to narrowly tailor any permitted discovery.

Code of Civil Procedure section 1987.1, subdivision (a), states

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person who's personally identifying information is sought may bring the motion. (Code Civ. Proc., § 1987.1, subd. (b).)

If a party seeks to subpoena personal records (e.g., medical and insurance records) and employment records, then the party must serve on the consumer/employee a notice to consumer along with a copy of the subpoena. (Code Civ. Proc., §§ 1985.3, subds. (b) & (e); 1985.6, subds. (b) & (e).) The party-consumer/employee whose records are sought may move to quash or modify the subpoena under Code of Civil Procedure section 1987.1. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).)

Code of Civil Procedure section 1987.1 requires that a motion to quash a subpoena be "reasonably made," but does not require that the parties first resolve the issue informally. (See Code of Civ. Proc., §1987.1.) Regardless, the parties met and conferred via videoconference on June 26, 2026, but were unable to resolve the issue. (Downey Decl., ¶¶6.) The Court should address the merits.

Defendants request judicial notice of Exhibit 4 (the Complaint in SWM2104502), Exhibit 5 (Protective Order in SWM2104502), Exhibit 6 (8/5/2022 Minute order, SWM2104502), Exhibit 7 (Sentencing Memorandum, SWM2104502), Exhibit 8 (Plea Form, SWM2104502), Exhibit 9 (Criminal Document Cover Sheet and letter from Catalyst Kids), and Exhibit 10 (Criminal Document Cover Sheet and letter from Families Uniting Families).

As such, the Court **DENIES** judicial notice of Exhibits 4, 5, 7, and 8 based on relevance. Moreover, the Court should **DENIES** judicial notice of Exhibits 9 and 10 as hearsay because materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* 91985) 175 Cal.3d 594, 598-599; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 608.) The Court should **GRANT** judicial notice of Exhibit 6, the Court's Minute Order on August 5, 2022, because it is the Court's own record. (Evid. Code, § 452, subd. (d).)

The Court **SUSTAINS** objections 3, 4, 6, 7, 8, and 9, and **OVERRULES** objections 1, 2, 5, 10, and 11.

In the present case, the Subpoenas seek:

Any and all non-redacted records pertaining to Jose De Jesus Perez; Date of Birth: 3/22/1988. Said records to include, but are not limited to, any and all records re service, probation records, including, but not limited to, any and all reports, histories, terms and requirements of service, terms of probation, requirements and conditions of probation, violations and consequences, correspondence, sign in sheets, completion certificates, probation revocations and all other records, pertaining to Jose De Jesus Perez; date of birth: 03/22/1988.

(Downey Decl., Exh. 1.)

Plaintiff argues these records only concern Plaintiff's participation in unrelated court-ordered programs and his compliance with the program requirements. There is no nexus between the records sought and any claim or defense in this action. Plaintiff contends Defendant seek the records in hopes of obtaining collateral information to portray Plaintiff in a negative light.

As phrased, the descriptions in the Subpoenas seeking "any and all records" is overly broad. The categories of documents to be produced must be "reasonably" particularized from the standpoint of the party on whom the demand is made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) The Subpoenas seek broad categories of documents, such as "service, probation records...any and all reports, histories, terms and requirements of service, terms of probation, violations and consequences, correspondence, sign in sheets, completion certificates, probation revocations and all other records." While some items listed may include some documents which are relevant and reasonably calculated to lead to admissible evidence, an otherwise permissible description of categories in a deposition subpoena may become burdensome if combined with detailed "definitions" and "instructions" that expand and complicate the demand. (*Id.*) Here, there is no clear limitation to subject matter tied to issues in this action.

Moreover, Plaintiff provided valid arguments to justify the objection based on the right of privacy. The party asserting a privacy interest has the burden of establishing its extent and the seriousness of the prospective invasion. (*Williams v. Superior Court* (2017)

3 Cal.5th 531, 557.) A party asserting a right to privacy must establish: (1) “a legally protected privacy interest”; (2) “a reasonable expectation of privacy in the circumstances”; and (3) “conduct by defendant constitutes a serious invasion of privacy.” (*Hill v. Nat’l Collegiate Athletic Ass’n* (1994) 7 Cal.4th 1, 39-40; see also *Williams, supra*, 3 Cal.5th at 552.) The right of privacy in criminal history has been recognized by the courts. (See *Central Valley Ch. 7th Step Foundation, Inc. v. Younger* (1989) 214 Cal.App.3d 145, 151-152, fn. 3; *Loder v. Municipal Ct.* (1976) 17 Cal.3d 859, 872-878.)

The burden shifts to Defendants, the party seeking discovery, to show that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 843-844.) Assuming the proponent meets its burden, the court then must “carefully balance” the competing interests: the right of privacy versus the interest in obtaining just results in the litigation. (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 573.) However, even when the balancing weighs in favor of disclosure, the courts must narrowly tailor the order to preserve the right of privacy to the greatest extent. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.)

Here, Defendants acknowledge possession of Plaintiff’s medical records from his primary health care and home assistance providers at Neuropraxis, but these records do not mention physical or mental injuries or conditions prior to the alleged incident. (Rozanski Decl., ¶5, Exh. 3.) Defendants explain that on August 5, 2022, when Plaintiff pled guilty in his criminal case in SWM210452¹, the court ordered Plaintiff to enroll in and complete parenting classes. (*Id.* Exhs. 6-8.) This is approximately a year after the Incident. Accordingly, Defendants argue the records sought are relevant to evaluate Plaintiff’s claims of injuries, to wit: a traumatic brain injury; injuries to his neck, back, feet, hands, and fingers; that he was unable to work following the Incident and is still on work restrictions; headaches, dizziness, vertigo, imbalance due to vestibular dysfunction, insomnia and sleep disturbance, fatigue, back sprain/strain, parasthesia and numbness in both hands, nausea, photophobia, sonophobia, paresthesia in both wrists, slowed cognition, light and noise sensitivity, blurry vision, anxiety, depression, fatigue, lack of motivation, and PTSD. Defendants explain that despite these complaints, Plaintiff was ordered to complete his parenting classes, and the records will go to the veracity of Plaintiff’s claims of physical injury, lost wages, and future earnings.

As noted, the Subpoenas are overly broad and present a risk of privacy invasion. However, Plaintiff placed his medical condition at issue. (*Vinson, supra*, 43 Cal.3d at 840 [a personal injury plaintiff partially waives the right of privacy to medical records by filing a lawsuit; *Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279 [“It is unfair to allow a party to raise an issue involving her medical condition while depriving an opposing party of the opportunity to challenge her claim”].) However, the compelled disclosure must be precise and narrowly tailored. (*Britt, supra*, 20 Cal.3d at 856.)

¹ The Court is aware that the Judicial Staff Attorney who performed legal research on this matter previously served as a Riverside County Deputy District Attorney. As a prosecutor, she had professional interactions with the deputy district attorney who appeared on record on August 5, 2022, Carly Rustebakke, when Plaintiff pled guilty and familiar with the defense attorney who appeared on record that same day, Annie Lu. There were only professional interactions with Ms. Rustebakke and Ms. Lu during her tenure as a prosecutor. This disclosure would not and does not affect her ability to be fair and unbiased in her duties as they relate to this matter.